

HOUSE No. 5344

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 9, 2026.

The committee on Consumer Protection and Professional Licensure, to whom was referred the joint petition (accompanied by bill, House, No. 5051) of David M. Rogers and William N. Brownsberger (by vote of the town) relative to removing the seating capacity requirements for licenses for the sale of alcoholic beverages to be drunk on the premises in the town of Belmont, reports recommending that the accompanying bill (House, No. 5344) ought to pass [Local Approval Received].

For the committee,

TACKEY CHAN.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act removing the seating capacity requirements of licenses for the sale of alcoholic beverages to be drunk on the premises in the town of Belmont.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding anything in chapter 128 of the acts of 1997 to the contrary,
2 restaurants holding licenses issued pursuant to such chapter, or authorized pursuant to a ballot
3 question thereunder, may have any number of seats.

4 SECTION 2. Notwithstanding anything in chapter 14 of the acts of 2004 to the contrary,
5 restaurants holding licenses issued pursuant to such chapter, or authorized pursuant to a ballot
6 question thereunder, may have any number of seats.

7 SECTION 3. Section 1 of chapter 388 of the acts of 2010 is hereby amended by striking
8 out the words "having a seating capacity of not less than 60 and no more than 250 seats".

9 SECTION 4. Section 1 of chapter 15 of the acts of 2014 is hereby amended by striking
10 out the words "having a seating capacity of not less than 39 and not more than 125 seats".

11 SECTION 5. This act shall take effect upon its passage.